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14.04 Documents Used in Transportation

a) Way Bill

The way bill is an acknowledgement of receipt of goods for transport by the carrier. The carrier, accepting goods for transport, issues waybills in the name of the consignors or consignees. It serves as an evidence of the contract of transport. It is also a document of tittle of goods. The ownership of goods represented by a waybill can be transferred by endorsement and delivery of the waybill. If a waybill lost, the consignee will be allowed to clear the goods from the carrier after he executes an indemnity bond.

b) Railway Receipt

Railway Receipt is an acknowledgement of receipt of goods by the railway for transporting. It serves as a document of title of goods, viz., it shows the title of its holders of the goods. It may be issued in the name of the consignor or consignee. Only on presentation of the railway receipt the railways will deliver the goods. If railway receipt is lost, the consignees can obtain the goods from the railway by executing an indemnity bond. Ownership of the goods can be transferred by endorsement and delivery of the receipt.

c) Charter Party

When goods are to be consigned in large quantity, it is advantageous to hire the whole or substantial part of the ship. The document through which this contract is made is known as 'Charter Party' may also be known as 'Voyage Charter' or 'Time Charter'. The person who hires the ship is known as 'Charter'. The charter party brings the vessel and crew under the control of the charters. The charter becomes responsible to the third parties for the acts of the master and crew of the ship.

d) Bill of Lading

Bill of Lading is a document containing the terms and conditions of the contract of carriage. It is issued by the shipping company and signed by the captain of the ship. It acknowledges the receipt of the goods described in it on board the ship. It also serves as an official receipt of goods. It is a document of title of goods. The main contents are: Name of Exporter, name of the ship, place of loading, particulars of goods shipped, port of destination, freight paid or to be paid, person to whom delivery of goods is to be made, date etc.

If the condition of the packages is good, a clean bill of lading is issued. If some of the packages are found damaged, a foul or clause bill of lading is issued.

e) Air Consignment Note or Airway Note

It is a document prepared by the consignor, which is handed over to the carrier of goods, while transporting goods through Airways. Air Consignment Note is made out in three original parts. One is signed by the consignor and marked for the carrier. The second is signed by both the consignor and the carrier and marked for the consignee (intended to accompany the goods) and the third is signed by the carrier and handed back to the consignor after the goods have been accepted.

14.05 Common Carrier

A common carrier is a person who is engaged in the business of carrying goods for hire indiscriminately for all persons.